

TULL v. UNITED STATES

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FOURTH CIRCUIT

No. 85-1259. Argued January 21, 1987—Decided April 28, 1987

The Clean Water Act (Act) authorizes injunctive relief against violators (33 U. S. C. § 1319(b)) and subjects them to a civil penalty not to exceed \$10,000 per day (§ 1319(d)). After denying petitioner's timely demand for a jury trial in the Government's suit for relief under §§ 1319(b) and 1319(d), the District Court imposed civil penalties and granted injunctive relief against petitioner. The Court of Appeals affirmed, rejecting petitioner's argument that the Seventh Amendment entitled him to a jury trial on the civil penalties claim. The court held, *inter alia*, that the District Court had exercised statutorily conferred equitable power in assessing monetary penalties.

Held:

1. The Seventh Amendment guarantees a jury trial to determine liability in actions by the Government seeking civil penalties and injunctive relief under the Act. An examination of the nature of such actions and of the remedies sought demonstrates that they are more analogous to "Suits at common law" within the meaning of the Amendment than they are to cases traditionally tried in courts of equity. Pp. 417-425.

(a) A Government suit under § 1319(d) is analogous to an action in debt within the jurisdiction of English courts of law prior to the Seventh Amendment's enactment, and therefore should be tried by a jury. The Government's argument that the action is more analogous to an action by the English sovereign to abate a public nuisance is debatable but irrelevant for Seventh Amendment purposes, since that Amendment requires trial by jury in actions unheard of at common law. Both a public nuisance action and an action in debt could be asserted by the sovereign to seek relief for an injury to the public in numerous contexts. The conclusion that both are appropriate analogies to a § 1319(d) action is sufficient here, particularly in light of the Court's characterization of the relief sought, *infra*. Pp. 418-421.

(b) Unlike public nuisance actions which relied on the injunctive relief provided by equity courts, the text and legislative history of § 1319(d) demonstrate that suits thereunder are intended to punish culpable individuals, and thus yield a type of remedy that at common law could only be enforced in a court of law. The contention that a § 1319(d) suit is similar to an equitable action for disgorgement of profits is not persuasive, since the latter is a remedy only for restitution, a more lim-